

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COREY DEROUNCE ROYAL-MILLION,

Petitioner

VS.

TONY JOHN ROYAL-MILLION,

Respondent

) Case Number: FDI-24-800431

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Corey Royal-Million (Petitioner) and Tony Royal-Million (Respondent). The parties married on 10/22/2017. Petitioner contends the parties separated on 6/26/2023, for a marriage of 5 years and 8 months. Respondent asserts the parties separated on 1/22/2019, for a marriage of 1 year and 3 months. The parties have no minor children in common. Both parties are self-represented.
- 2) On 1/22/2019, a Criminal Protective Order was issued for Respondent's protection against Petitioner. The CPO expired on 1/22/2022.
- 3) On 7/29/2021, a 3-Year Restraining Order After Hearing was entered for Petitioner's protection against Respondent in related Case No. FDV-21-815745. It expired on 7/28/2024.
- 4) On 11/21/2025, a 5-Year Restraining Order After Hearing was entered for Respondent's protection against Petitioner in related Case No. FDV-17-813401. It is set to expire on 11/21/2030.

1 5) Now on for hearing is Petitioner's Order to Show Cause and Affidavit for Contempt filed
2 7/7/2026. Petitioner alleges the following:

- 3 a. Respondent violated the restraining order filed on 7/29/2021 which required Respondent
4 to attend a 52 week batterers' intervention program.
- 5 b. Respondent violated the restraining order filed on 7/29/2021 by emptying a storage unit
6 in his name and discontinuing payments on the jointly used storage unit (leading to the
7 unit being auctioned).
- 8 c. In July 2022, Respondent took community or separate property belonging to Petitioner
9 including an electric scooter, wallet, identification cards, bank cards, and tumi satchel.
- 10 d. Respondent mismanaged financial accounts during the marriage.
- 11 e. Respondent refused to provide emotional support when Petitioner's grandparents passed
12 away in May 2022 and refused to provide financial assistance for Petitioner to fly to
13 Texas to attend his grandparents' funerals.
- 14 f. Respondent used community resources for personal benefit while refusing to contribute
15 to Petitioner's basic necessities during marriage.

16 Petitioner requests:

- 17 a. Value of property lost due to storage-unit auction.
- 18 b. Lien fees, penalties, and administrative charges.
- 19 c. Replacement value of stolen property.
- 20 d. Loss of cash and personal effects taken by Respondent.
- 21 e. Reimbursement claims arising from undisclosed accounts and misappropriated funds.
- 22 f. Tax exposure from unreported assets and account activity.
- 23 g. Legal fees required to pursue enforcement and contempt motions.

24 6) Per the Proof of Service filed 8/24/2026, Petitioner's Order to Show Cause was personally served
25 on Respondent on 8/21/2026.

26 7) On 8/26/2026, Respondent filed a Responsive Declaration. Respondent asks the Court to dismiss
27 the contempt charges on the following grounds. In the alternative, Respondent asks the Court to
28 appoint legal counsel to represent Respondent. Respondent states:

- 29 a. Petitioner does not set forth proper individual counts.

- 1 b. The only identifiable year mentioned is 2022 and California contempt actions are subject
2 to a two-year statute of limitations.
- 3 c. Petitioner improperly filed this contempt action in the FDI matter rather than in Case No.
4 FDV-21-815745.
- 5 d. Respondent was not served with the July 2021 restraining order until 4/3/2024, and by
6 that time no storage units existed.
- 7 e. The July 2021 restraining order permits Respondent to engage in individual therapy as an
8 alternative to a 52-week batterer intervention program. Respondent states he completed
9 52 weeks of individual therapy.

10 **B. Findings and Order**

- 11 1) The Court finds good cause to dismiss Petitioner's 7/7/2026 Order to Show Cause Re: Contempt
12 in its entirety because: (a) Petitioner failed to succinctly and separately plead each count, (b)
13 Petitioner did not explain which orders Respondent violated with respect to most of Petitioner's
14 allegations, (c) many of Petitioner's allegations are not the appropriate subject for contempt
15 charges, and (d) the allegations of contempt which occurred in 2022 are time-barred under Code
16 of Civil Procedure section 1218.5(b), which states that the statute of limitations for commencing a
17 contempt action to enforce an order under the Family Code (that is not a child or spousal support
18 order) is two years from the time the alleged contempt occurred.
- 19 2) Petitioner's request for legal fees to pursue his 7/7/2026 Order to Show Cause Re: Contempt is
20 denied.
- 21 3) Petitioner's requests for orders related to "value of property lost due to storage-unit auction; lien
22 fees, penalties, and administrative charges; replacement value of stolen property; loss of cash and
23 personal effects taken by Respondent; reimbursement claims arising from undisclosed accounts
24 and misappropriated funds; and tax exposure from unreported assets and account activity" are
25 denied without prejudice and may be addressed at trial.
- 26 4) The Court will prepare the Findings and Order After Hearing.
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